

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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SHAQULLE ABROM AND KENNETH AUSTIN,

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK, LIEUTENANT ALEXANDRU
ANGHEL, POLICE OFFICER CHRISTOPHER FRANCIS,
POLICE OFFICER DELINDA GIRALDO AND JOHN DOES
#1-2,

Index#

Defendants.

Defendants.

----- X

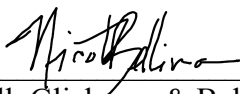
To the above named Defendants:

THE CITY OF NEW YORK, LIEUTENANT ALEXANDRU ANGHEL, POLICE OFFICER
CHRISTOPHER FRANCIS, POLICE OFFICER DELINDA GIRALDO,

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Kings County as the place of trial. The basis of venue is the place in which the harm occurred.

Dated: Brooklyn, New York
June 27, 2024



Stoll, Glickman & Bellina, LLP
Attorney for Plaintiffs
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SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

----- X
SHAQULLE ABROM AND KENNETH AUSTIN,

COMPLAINT AND
JURY DEMAND

Plaintiffs,

-against-

Index #

THE CITY OF NEW YORK, LIEUTENANT
ALEXANDRU ANGHEL, POLICE OFFICER
CHRISTOPHER FRANCIS, POLICE OFFICER
DELINDA GIRALDO AND JOHN DOES #1-2,

Defendants.
----- X

Plaintiffs, by their attorneys, Stoll, Glickman & Bellina, LLP, for their complaint allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiffs seek relief through 42 U.S.C. §1983 for the violation of their Fourth and Fourteenth Amendment rights.

2. The claim arises from a January 27, 2023 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiffs to false arrest and malicious prosecution.

3. Plaintiffs seek monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

VENUE

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988 and the laws and Constitution of the State of New York.

5. All events giving rise to these claims occurred with the boundaries of Kings County in the City and State of New York.

PARTIES

6. Plaintiffs are residents of Kings County in New York State.

7. The City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

8. Lieutenant Alexandru Anghel, Police Officer Christopher Francis and Police Officer Delinda Giraldo were, at all times here relevant, police officers of the NYPD, assigned to PSA3, and as such were acting in the capacity of agents, servants and employees of the City of New York. Defendants Anghel, Francis and Giraldo was involved in the illegal arrest of plaintiffs and/or failed to intervene in the actions of their fellow officers. Defendants Anghel, Francis and Giraldo are sued in their individual capacity.

9. John Does #1-2, are individuals whose names are currently unknown to plaintiffs, are employees of the NYPD, and are sued in their individual capacities. John Does #1-2 were NYPD officers working with defendants Anghel, Francis and Giraldo on January 27, 2023.

10. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and

State of New York.

FACTUAL ALLEGATIONS

11. In the early evening of January 27, 2023, plaintiffs were inside the Exotic Smoke Shop at 980 Myrtle Ave. in Brooklyn.

12. At approximately 8:20PM, the defendant officers came into the location, surrounded plaintiffs and demanded their identification. Plaintiffs complied.

13. Defendant officers stated that they believed the plaintiffs were gambling but would ask the store employee to pull up surveillance video. Defendant Anghel asked for the video but, within seconds of asking, decided not to wait for it. Instead, the officers arrested plaintiffs despite having no probable cause to believe a crime had been committed.

14. There was no evidence in the store or near plaintiffs, such as cards, dice or money, to suggest they were gambling. Plaintiffs had not committed any crime.

15. Plaintiff Abrom was taken to a police precinct. He was then transported to central booking to await arraignment. He remained in police custody until the next day when he was brought before a Judge and released. Eventually, all charges were dismissed and sealed.

16. Plaintiff Austin was taken to a police precinct. He was held overnight and released the next day with a Desk Appearance Ticket. After making court appearances on the DAT, all charges were dismissed and sealed.

17. Defendant Francis was the arresting officer for plaintiffs. Upon information and belief, Defendant Francis took plaintiff Austin into physical custody, processed both arrests, prepared arrest paperwork related to their arrest, and coordinated with the District Attorney's office related to the prosecution of plaintiffs. Defendant Francis made false statements, including a claim that money had been exchanged between plaintiffs, in the complaints used to charge

plaintiffs.

18. Other officer defendants did not see any gambling activities and did not see any evidence of gambling inside the store. They nevertheless participated in and/or consented to plaintiffs' arrest.

19. Defendants lacked probable cause or reasonable suspicion to believe plaintiffs had been involved in any illegal activity.

DAMAGES

20. As a direct and proximate result of the acts of defendants, Plaintiffs suffered the following injuries and damages:

- a. Violation of their rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution;
- b. Violation of their rights to Due Process of Law under the Fourteenth Amendments to the United States Constitution;
- c. Loss of liberty;
- d. Emotional suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 – as to Individual Defendants)

21. The above paragraphs are here incorporated by reference.

22. Defendants have deprived Plaintiffs of their civil, constitutional and statutory rights under color of law and have conspired to deprive them of such rights and are liable to plaintiffs under 42 USC § 1983.

23. Defendants' conduct deprived Plaintiffs of their right to be free of unreasonable searches and seizures and subjected them to malicious prosecution pursuant to the Fourth and

Fourteenth Amendments to the United States Constitution. Defendants' conduct also deprived Plaintiffs of their right to due process of law, pursuant to the Fourteenth Amendment to the United States Constitution.

24. Defendants falsely arrested and maliciously prosecuted plaintiffs by arresting and causing them to be prosecuted despite lacking probable cause to believe they had committed any crime. All charges against plaintiffs were dismissed.

25. Defendants' conduct deprived plaintiffs of their right to a fair trial, pursuant to the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Defendants were aware or should have been aware that they presented false information to the District Attorney's Office which was used to prosecute plaintiffs. As a result of those false statements, plaintiffs were charged with offenses they had not committed.

26. By presenting false evidence to the District Attorney's office, defendants deprived plaintiffs of their right to a fair trial.

27. Plaintiff has been damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION

(42 U.S.C. § 1983 – Municipal Liability as to Defendant City of New York)

28. The above paragraphs are here incorporated by reference

29. The City is liable for the damages suffered by Plaintiffs as a result of the conduct of its employees, agents, and servants, in that: after learning of its employees' violation of Plaintiffs' constitutional rights, the City failed to remedy the wrong; it has created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue; and it has been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular use of excessive force and false arrests by its police officers, but has nevertheless exhibited deliberate indifference to such excessive force and

false arrests; that deliberate indifference caused the violation of Plaintiffs' constitutional rights in this case.

30. The City knew of, or had reason to know, that Defendant Francis was likely to violate the rights of persons such as Plaintiffs. He is the subject of approximately 22 complaints made by civilians to the Civilian Complaint Review Board, several of which were substantiated, in addition to several lawsuits filed against defendant Francis in the Federal District Court for the Eastern District of New York, and in the Kings County Supreme Court. Complaints to the CCRB and lawsuits filed against this Officer were numerous before the incident giving rise to this claim and have continued to grow in number since.

31. The City knew of, or had reason to know, that Defendant Anghel was likely to violate the rights of persons such as Plaintiff. He is the subject of approximately 16 complaints made by civilians to the Civilian Complaint Review Board regarding, several of which were substantiated, in addition to several lawsuits filed against defendant Anghel in the Federal District Court for the Eastern District of New York, and in the Kings County Supreme Court.

32. Despite the previous claims of wrong-doing by these officers, the City has failed to take any steps to prevent future wrong-doing by these officers. This is representative of the City's ongoing failures to address police misconduct.

33. The City's continuing failure to deter police misconduct has led to an increase in the number of lawsuits for repeat routine misconduct by the same officers, same units, and same precincts.

34. The widely held assumption is that civil rights lawsuits deter police misconduct. "The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence

fails.” *Wyatt v. Cole*, 504 U.S. 158, 161, (1992) (citing *Carey v. Piphus*, 435 U.S. 247, 254-257, (1978)). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” *Hudson v. Michigan*, 547 U.S. 586, 598 (2006) (citing *Corr. Servs. Corp. v. Malesko*, 534 U.S. 61, 70 (2001) and *Nix v. Williams*, 467 U.S. 431, 446, (1984)).

35. However, the City of New York has isolated NYPD officers from accountability for civil rights lawsuits by routinely indemnifying officers who violate the constitutional rights of citizens against all liability. The result is that civil rights lawsuits have no deterrent value to the City, the NYPD, or NYPD officers. “It is almost axiomatic that the threat of damages has a deterrent effect, surely particularly so when the individual official faces personal financial liability.” *Carlson v. Green*, 446 U.S. 14, 21, (1980) (citing *Imbler v. Pachtman*, 424 U.S. 409, 442 (1976)) [footnote omitted].

36. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even when the same officers are named in numerous lawsuits. In 1999, then-Comptroller Alan Hevesi reported that there was a “total disconnect” between the settlements of even substantial civil claims and NYPD action against officers. That total disconnect has remained fully in place since 1999. The result is a system in which the City pays vast sums of money to settle claims of constitutional violations, but the NYPD does nothing to investigate or address the underlying causes of such violations.

37. At a City Council hearing on December 12, 2009, and on other occasions, the City Council, Government Operations Committee has been alerted to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability. Nonetheless,

the City Council has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units, and precincts are disproportionately responsible for New York City civil rights lawsuits.

38. The events underlying Plaintiffs' factual allegations were not an isolated incident. The City has been aware for some time, from lawsuits, Notices of Claim, complaints filed with the Civilian Complaint Review Board ("CCRB"), City Council hearings, newspaper reports, cases resulting in declined prosecutions and dismissals, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of NYPD officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

39. Moreover, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same precinct, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against Plaintiffs.

40. The City has purported to attempt to address police officers' abuse of authority, in part through the creation of the CCRB. However, the CCRB has proved vastly inadequate for that purpose.

41. The CCRB, a City police oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs

they have experienced, a practice that often results in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD upon finding misconduct by an officer.

42. The NYPD, once receiving a substantiated complaint by the CCRB, routinely fails to adequately discipline officers for misconduct. Even as focus on police misconduct has increased in recent years, and new leadership has promised sweeping operational changes, the NYPD still routinely fails to discipline its officers. According to a study conducted by the WNYC, in 2012, police officers received no discipline in 104 cases (40.3%) of the substantiated complaints processed (258).¹ In 2013, the NYPD dropped 28.3% of the substantiated complaints without any disciplinary action.² In 2014, it dropped 24.5%.³

43. Due to the continuing failures of the CCRB, many abuses of authority by police officers go unreported. Even when abuse is reported, police officers rarely, if ever, are disciplined. This pattern is well-known to NYPD officers; as a result, officers feel free to abuse their authority with little or no fear of repercussions. Such lack of accountability has permitted, and even encouraged, frequent and widespread violations of the civil rights of individuals at the hands of NYPD officers. Furthermore, the lack of accountability contributed to the defendant police officers' actions described above in that the officer defendants felt insulated from any

¹ WNYC, *Police Punishment: CCRB vs NYPD*, <http://project.wnyc.org/ccrb/> (last visited July 23, 2015).

² *Id.*

³ *Id.*

repercussions for their actions regarding the Plaintiffs.

44. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provides so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded. There is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms.

45. The City has also been alerted to the regular use of stop and frisks by its police officers, which disproportionately target people of color, despite the of lack criminal evidence that such stop and frisks actually produce, and despite the humiliation, inconvenience, and constitutional violations that the majority of law-abiding people, mostly in communities of color, suffer as a result.

46. Even as the use of stop and frisk has declined precipitously in recent years – in large part due to the federal class action lawsuit *Floyd, et al. v. City of New York, et al.*, 08-CV-1034 (SAS) – the police have continued to use the policing tactic in a severely racially disproportionate manner, and for the improper purpose of meeting “performance goals” (arrest quotas). According to data collected by the New York Civil Liberties Union (“NYCLU”), in 2014, New Yorkers were stopped by the police 46,235 times. Of the people stopped: 38,051 were totally innocent of any crime (82%); 24,777 were Black (55%); 12,662 were Latino (29%);

and 5,536 were white (12%).⁴

47. The City's inability to prevent its officers from abusing the stop and frisk policy are emblematic of the City's continuing failures to exercise adequate control over the NYPD, and to prevent police officers from abusing their authority. Such failures have led to further abuse of authority by police officers, including the incident underlying Plaintiffs' Complaint.

48. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

49. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors, in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. As the Honorable Jack Weinstein, United States District Court Judge of the Eastern District of New York, has written:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration—through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department—there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

⁴ See NYCLU, *Stop and Frisk Campaign: About the Issue*, <http://www.nyclu.org/content/stop-and-frisk-data> (last visited July 22, 2015).

Colon v. City of New York, No. 09-CV-8, 2009 WL 4263362, at *2 (E.D.N.Y. Nov. 25, 2009).

50. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate Plaintiff's civil rights, without fear of reprisal.

51. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

A. In favor of plaintiff in an amount to be determined by a jury for each of plaintiffs' causes of action;

B. Awarding plaintiffs punitive damages in an amount to be determined by a jury;

C. Awarding plaintiffs reasonable attorneys' fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

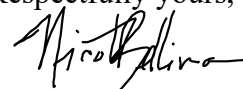
Plaintiffs demand a trial by jury.

DATED: June 27, 2024
Brooklyn, New York

TO: City of New York
Corporation Counsel Office
100 Church Street
New York, NY 10007

Police Officer Delinda Giraldo
Police Officer Christopher Francis
Lieutenant Alexandru Anghel
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25 Central Avenue, Brooklyn, NY 11206

Respectfully yours,



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